

showing for Breach of Contract, and that the balance owed to the Plaintiff is \$3,832.87. There is evidence of an implied contract in that an agreement was mailed to Defendant, and he then, with knowledge of the terms, activated and used the card for purchases. The billing statements reflect that Defendant did not repay all of the money that was given to him for the purchases.

The burden would normally shift to the Defendant at this point, but the Motion is unopposed.

A memo of costs, filed on 1/20/26, reflects that Plaintiff incurred costs of \$297.61.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.
2. Plaintiff to prepare the order after hearing.

9. 9:00 AM CASE NUMBER: L25-07106
CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. JUAN SALAZAR
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AGAINST DEFENDANTS**
FILED BY: SALAZAR, JUAN
***TENTATIVE RULING**

Defendants filed a Motion to set aside entry of default and default judgment.

Plaintiff filed a timely Response.

Background

The lawsuit is a subrogation matter where Defendants were alleged to be the responsible parties in a car accident in which the victim was insured by the Plaintiff.

Defendants argue that the default judgments against them should be set aside, under Section 473(b) of the CCP, because they failed to provide the process documents to their insurance company. This failure, they argue, qualifies as a mistake of fact, inadvertence, or excusable neglect.

They also allude to the fact that the service of these documents was not done on them personally.

No other reasons are offered.

The Complaint was filed on 6/26/25. Default was entered 11/12/25, with Judgment filed on 7/24/26.

Analysis

Section 473(b) of the CCP permits a court to set a default judgment in the case of mistake of fact, inadvertance, or excusable neglect on the part of the defendant. A defendant can mistakenly fail to file a timely response to a complaint. (See *Lieberman v. Aetna Ins. Co.* (1967) 249 CA2d 515, 523-524, where defendant mistakenly thought that only codefendant had been served.). But the defendant must identify the mistake that led to the default. (*Hopkings & Carley v. Gens* (2011) 200 CA 4th 1401, 1410-1411.) And the mistake must be excusable. A mistake is excusable when a reasonably prudent person under the same or similar circumstances might have made the same error. (*McClain v. Kissler* (2019) 39 CA5th 399, 414-415.) The burden of proving mistake lies with the defendant.

Excusable neglect is an act or omission that might be expected of a reasonably prudent person under similar circumstances. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 C4th 249, 258.) A defendant must establish that he used reasonable diligence. (*People ex rel Dep't of Transp. V. Superior Court (Isenhower)* (2003) 105 CA4th 39, 44. It is the defendant's burden to show excusable neglect. (*Bonzer v. City of Huntington Park* (1993) 20 CA4th 1474, 1478.

A court can also set aside a default judgment in the case that defendant did not actually receive notice of process, or when the service was otherwise void, under Sections 473.5 and 473(d) of the CCP, respectively.

Section 473.5 of the CCP permits the court to set aside a default judgment where it finds that the defendant was not given actual notice of the process. There is a limitation within which Defendant can seek relief under this section, however, and that is no later than two years after the entry of the default judgment. (Section 473.5(a) of CCP.)

Section 473 of the CCP also grants courts the power to set aside a default judgment when the judgment is void. To clarify this distinction, where Section 473.5 applies to cases where there is a lack of actual notice despite an otherwise *valid* judgment, such as proper constructive service, Section 473 applies to those instances where there is a lack of actual notice as a consequence of improper service. (See *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207.)

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20(b)*. This service can occur at the defendant's "dwelling house [or] usual place of abode ... in the presence of a competent member of the household or a person apparently in charge of his or her ... usual mailing address." *Id.*

In the instant matter, Defendants seem to implicitly argue that they either did not receive

actual notice, or that service was improper, when they argue that “someone at Defendants’ residence was served with process at the home.” They go on to argue that the description of Defendant Salazar did not match the description on a traffic collision report.

But they don’t argue that they did not receive notice, or that the person who received the documents at the home was not a competent member of the household. What’s more, the proof of service (filed on 9/2/25, and of which this court takes judicial notice), reflects substitute service, so it seems fairly reasonable that the person on whom the documents were actually served may not physically resemble the defendants.

Since service was effected by a registered process server, there is a rebuttable presumption that service was done properly. Defendants have not rebutted this presumption.

Defendants rely on *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, for the argument that their reliance on their insurance carrier to defend them is excusable neglect. But in that case, the insured party promptly forwarded the summons and complaint to its insurance broker.

We don’t have that here. Defendants in the instant matter never sent any process documents to their insurance broker.

We have no other representation by the Defendants that this court can construe as a mistake, inadvertence, or excusable neglect.

The Defendants have not met their burden.

Disposition

Defendants’ Motion is denied.

Plaintiff to file Order.

10. 9:00 AM CASE NUMBER: L25-11026
CASE NAME: WELLS FARGO BANK, N.A. VS. GUADALUPE PALOMINO
***HEARING ON MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF**
NONAPPEARANCE
FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts